

MOTION TO QUASH**TENTATIVE RULING:**

Petitioner's Motion to Quash Subpoena Duces Tecum of Objector MEGAN HERRICK propounded to third parties El Dorado Savings, Wells Fargo Bank, NA, and Fidelity Investments is GRANTED.

Petitioner's request for Attorney fees is GRANTED IN PART.

The court finds the subpoenas issued for Lois Herrick's financial records from the three (3) separate financial institutions are irrelevant to the issues in this case, a violation of her privacy and were improperly served to Petitioner's counsel pursuant to CCP §2020.410(c) and CCP §1985.3(g).

The documents requested, on their face, are irrelevant to the conservatorship of the person of Lois Herrick, which involves helping her take care of her daily needs, and does not pertain to her finances. The Objector's subpoenas appear to reference Ms. Herrick's well-being in their stated purpose, but are wide ranging and extensive, invasive of her privacy and bear no relevance as to whether or not Ms. Herrick's daily needs are being met under the conservatorship.

CCP §2020.410(c) requires that the documents requested via subpoena duces tecum shall command compliance on a date that is "...no earlier than 20 days after the issuance, or 15 days after the service of the subpoena...whichever date is later." The notices to Lois Herrick seek to examine records on December 19, 2019, the same date they are dated. Further, the notices give no time for objection, and the proof of service is unsigned. There is a hand written notation on the proof of service stating "Mailed to incorrect address on 12/19/19" and "Mailed to OPC on 12/30/19". (Burton Decl. Exh B)

CCP §1985.3(g) provides that a motion to quash a subpoena duces tecum seeking personal records must be served on opposing counsel at least five (5) days before the date for the production of documents. The subpoenas issued by the Objector appear to be served well beyond that date and command performance by Ms. Herrick on the very date they are signed, and were served by mail a full eleven (11) days beyond the date for the production of documents. (Burton Decl. Exh B)

The court has discretion to award reasonable attorney fees and costs pursuant to CCP § 1987.2(a) which provides, in relevant part, "the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive."

The court finds the hourly rates of Petitioner's attorney and paralegal to be reasonable and grants three (3) hours of attorney time at \$325 per hour, one point eight (1.8) hours of paralegal time at \$145 per hour and \$60 court cost for a total of \$1,180, payable by Objector within thirty (30) days of the hearing date.

The prevailing party is to submit an order to the court consistent with this ruling.

Unless a hearing is requested, this ruling is effective immediately.